

Paris Association of Cooperative Teachers
Contract

2019-2022

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ARTICLE I

RECOGNITION

The Board of Education of Paris Cooperative High School, Edgar County, Paris, Illinois, hereinafter referred to as the "Board", recognizes the Paris Association of Cooperative Teachers IEA/NEA, hereinafter referred to as the "Association", as the sole and exclusive negotiating agent for all full and part-time regularly employed certified personnel, hereinafter referred to as "Teachers". Such representation excludes teacher aides, Principal, Assistant Principals, Curriculum Specialist and "Supervisors", meaning any individual having authority in the interests of the employer to hire, transfer, suspend, layoff, recall, promote, discharge, reward or discipline other employees within the appropriate bargaining unit and adjust their grievances or to effectively recommend such action if the exercise of such authority is not of a merely routine or clerical nature, but requires the use of independent judgment. The term "Supervisor" includes only those individuals who devote a preponderance of their employment time to such exercising authority.

ARTICLE II

EMPLOYEE AND ASSOCIATION RIGHTS

2.1 Non-Discrimination

The Board and the Association shall not discriminate against any teacher with respect to hours, wages, terms and conditions of employment for reasons of membership, or non-membership in the Association, participation in negotiations with the Board, or the institution of any grievance, complaint or proceeding under this Agreement.

2.2 Right to Representation

- A. Before the Board or the administration takes any disciplinary action, a conference will be held with the teacher to discuss relevant aspects, including parental complaints.
- B. When a Teacher is required by the Board to appear before the Board concerning any matter that could adversely affect the teacher's employment status or the teacher's salary, the teacher shall be advised in writing of the reasons for the requirement. Further, the teacher shall be entitled to have an Association Representative present.

2.3 Personnel File

Each teacher shall have the right during regular business hours, but not when the teacher is otherwise assigned, to examine the contents of his/her personnel file provided one (1) hour advance notice is given. The teacher shall be permitted to place in the personnel file such written reactions as the teacher may desire, except for university credentials.

2.4 Professional Dues Deduction

The Board shall deduct from the pay of each teacher the current membership dues of the Association, including the Illinois Education Association and National Education Association, provided that at the time of such deduction the teacher has executed a written authorization form. The Association shall annually certify the amount of dues. The authorization form shall be furnished by the Association and shall remain in effect from year to year. All dues deducted by the Board shall be remitted to the Association ten (10) working days after the deduction. The authorization may be revoked between September 1 and September 15. The Association will receive written notice of the revocation within five (5) days.

2.5 Meetings, Notices, and General Information

The Association shall be allowed the following:

- A. The use of school buildings for meetings before 5:30 p.m. if the facility is not being used for other activities. The Association will pay for any additional expenses incurred by the

Board for evening meetings, approved by the Principal. Such expenses shall be made known at the time of approval.

- B. The use of teacher mail boxes, electronic mail, in accordance with any Cooperative policy and an area assigned by the building principal for the purposes of internal communication.
- C. The use of school equipment, e.g. copy machines and computers, outside the regular school day, if not being used for educational purposes. Computers shall only be used in accordance with any Cooperative computer usage policy. The Association shall pay for the cost of consumable supplies.
- D. The Board shall provide a telephone in the teachers' lounge. Teachers shall be responsible for long distance charges. The Board reserves the right to remove the telephones at any time if the teachers making such calls do not pay for long distance charges.

2.6 Minutes of Board Meetings

The Board agrees that a copy of the minutes of all Board meetings shall be sent to the Association President no later than one week following the Board meeting at which they were formally approved.

2.7 Cooperative Financial Statements

The Association shall be furnished, upon request, copies of the annual financial statement, adopted budgets, and any other information available within the Illinois Freedom of Information Act. The cost for reproducing such information is to be assumed by the party requesting such information.

2.8 Association Matters – Board Agenda

The Board will place as items for consideration on the Board Agenda an Association Report, when requested, on specific items brought to its attention by the Association during the Audience to Visitors portion of the Agenda, and after the meeting concludes, but prior to adjournment.

2.9 Teacher's Lounge

The Teacher's Lounge shall not be used for meetings during the school day.

ARTICLE III

EMPLOYMENT CONDITIONS

3.1 School Calendar

- A. The Board shall establish a school calendar that shall contain no more than one hundred eighty-nine (189) workdays. If the emergency workdays are not used, they shall not become teacher workdays. Teachers will not be required to work more than one hundred eighty (180) days.
- B. The School calendar shall reflect one-half (1/2) day of pupil attendance and one-half day of teacher in-classroom preparation on the first day of pupil attendance of the school year, and one-half (1/2) day of pupil attendance at the end of the first semester for classroom activity review and classroom planning.
- C. At the time that the Principal presents a proposed school calendar to the Board of Education, the Principal shall make a copy of the calendar available to the union President.

3.2 Substitution

The Board will maintain a list of substitute teachers. In the event of teacher absence, an attempt will be made to provide a substitute.

3.3 Notification of Assignments

- A. All teachers shall be given written notice of his/her tentative teaching and coaching assignments for the forthcoming year no later than ninety (90) days preceding the first day of the new school term. In the event changes in such assignments are required, the teacher affected shall be notified. In the event of emergency changes after August 1, the teacher shall be notified and shall be allowed to resign if such change isn't acceptable.
- B. All teachers shall be given written notice of his/her tentative teaching and coaching assignments for the forthcoming year not later than ninety (90) days preceding the first day of the new school term. **All teachers shall be notified of each course assignment and number of course sections for each assignment they are assigned no later than the last day of teacher attendance of the preceding year.** In the event changes in such assignments are required, the teacher affected shall be notified within five (5) days. In the event of **one course/subject** emergency change after August 1, **the district will compensate the teacher for their planning time outside of school according to the extended contract on Schedule A.** In the event of emergency changes after August 1, the teacher shall be notified and shall be allowed to resign if such change isn't acceptable.

3.4 Vacancies – Posting

- A. The Principal shall send all posted openings, both open positions as well as promotional, electronically to the PACT membership. Openings will also be posted in the high school office. The Board shall permanently fill no vacancy until five (5) teacher working days have elapsed following receipt of the notice. Temporary appointments may be made during the posting period.
- B. The Board reserves the rights to assign, reassign, and transfer employees based upon criteria established for each position.
- C. All fresh/soph, junior varsity, varsity, and non-athletic extra duty per-event positions shall be posted and offered to PHS staff for five (5) teacher working days. Per-event positions are defined for this purpose to include clock management, bookkeepers, announcers, crowd control, door watchers, and ticket takers. Applicants themselves must contact (may contact electronically by email) the Athletic Director to be considered for a position. Vacancies remaining after five (5) teacher working days may be offered to individuals not employed by PHS, only if no PHS staff has indicated a desire for the position. A list of alternates will be kept. In the event that no alternate is available to work, the position may be filled as necessary.
- D. If needed, administration can assign duties based on an Assigned Duty Schedule per positions offered

3.5 Field Trips

Teachers may request field trips. Such requests shall be subject to the approval or denial of the building principal.

3.6 Internal Substitution

Any teacher required to substitute for a fellow teacher's entire class during that teacher's preparation period, or is required to simultaneously teach an entire class in addition to that teacher's regular assignment, shall be compensated according to Schedule A.

3.7 Aide Substitution

An attempt will be made to provide qualified substitutes for special education aides, classroom aides, building aides, and library aides. The Association will assist the administration in compiling a list of potential substitutes.

3.8 Teacher Work Day

- A. The teacher workday shall not exceed eight (8) clock hours except that teachers shall be required to work a longer workday on occasion to accommodate:
 - a. Faculty Meetings
 - b. Conference/Workshop Days
 - c. Open Houses
 - d. Extra Duties as Compensated in Appendix A
 - e. Field Trips
 - f. Other Regular Scheduled School Activities
 - g. Emergencies as Defined by Administration
 - h. If the Administration permits the scheduling of parent/teacher conferences during evening hours, those teachers shall be compensated with an equal number of released hours in the afternoon of the regularly scheduled conference day.
- B. A high school teacher who is asked to teach a class before regular school hours shall have his/her school day end a period earlier than the regular school hours, without losing his/her preparation period.
- C. An employee's level of participation in voluntary activities will not be reflected in evaluations.
- D. Except in case of emergency, faculty meetings shall be scheduled at least twenty-four (24) hours in advance.
- E. On days before a scheduled holiday, the teacher workday will end with the pupil attendance day. However, the teachers agree to maintain sufficient supervision, as determined by the building principal, until all children have left the building.

3.9 Part-Time Teachers

- A. Part-time retired teachers' school day will begin at the start of their assigned class and will end when the class ends. Retired teachers teaching multiple classes will be paid only for the classes they teach and will not be paid for intervening periods or for a preparation period.
- B. Retired part time teachers will not be required to do extra duty.

3.10 Dock

Should a teacher be docked, the docking will be 1/180th of his/her salary schedule amount.

3.11 Office Equipment

Each teacher shall have a working classroom computer and a copy machine available and maintained in good repair.

3.12 Keys

Teachers may request building and classroom keys. Administration may approve or deny such requests at its discretion. If approved, keys will be supplied without charge.

3.13 Preparation Time

Each full-time teacher will have at least one regular class period per day for preparation time. The Association will be informed prior to the reduction of preparation time.

ARTICLE IV

LEAVES

4.1 Sick Leave

- A. Each teacher shall be entitled to twelve (12) sick leave days per year without loss of pay or benefits. Sick leave shall accumulate to no more than 360 days, including the leave for the current year. Sick leave shall be interpreted to mean personal illness, including pregnancy-related illness, or illness or death in the immediate family or household. The immediate family for purposes of this Article shall include parents, spouse, brothers, sisters, children, grandparents, aunts/uncles, grandchildren, parents-in-law, brothers and sisters-in-law, and legal guardians. Subject to the Board's operational needs, employees may use one (1) sick leave day each school year in order to attend a funeral for a person not defined as immediate family member.
- B. A teacher shall be allowed to transfer sick leave to any other teacher who has exhausted his/her accumulated sick leave and personal leave in accordance with the terms of the memorandum of understanding between the parties.

4.2 Personal Leave

The Board shall grant each teacher two (2) personal leave days without loss of pay. After twenty (20) years of service as a teacher, a teacher shall be entitled to three (3) personal days per year. Unused personal leave days shall accumulate as sick days. Unless approved by the Principal, none will be taken the day before or after holidays or vacations.

4.3 Association Leave

The Board will provide a total of no more than nine (9) teacher days of Association leave to be utilized at the discretion of the Association for attendance at official IEA conferences, workshops, and legislative hearings according to the following schedule:

- A. First three (3) days at no cost to the Association.
- B. Next four (4) days with cost of substitute teacher to be reimbursed by the Association to the Cooperative.
- C. Next two (2) days with the cost of teacher's salary to be reimbursed by the Association to the Cooperative.
- D. No more than four (4) teachers per school day shall be allowed to use Association leave.
- E. Personal leave days shall not be used for Association business.

- F. Notification for Association leave shall be made to the Principal's office two (2) school days prior to utilization.

4.4 Professional Meetings

Teachers may apply in writing for at least one (1) professional meeting and/or professional visit per year:

- A. If approved, the Board shall pay the cost of the substitute, conference fee, meals, mileage, and lodging.
- B. If not approved as outlined above, the teacher shall be given the option to attend one (1) professional conference with the Board paying for the cost of the substitute only, if a qualified substitute is available and with daily limitation as follows: High School 3
- C. If for any reason a teacher shall be denied a professional meeting, then upon request, the teacher shall be given written reason for such denial.

4.5 Court Witness and Jury Duty

Any teacher who serves as a member of a jury or is subpoenaed, as a court witness for non-school litigation shall continue to draw his/her regular salary provided that all monies received from such duties shall be turned over to the Cooperative. Reimbursement for mileage and other travel expenses shall not be considered jury pay.

4.6 Leaves-of-Absence

- A. Leaves-of-absence without pay for up to one (1) year may be granted to tenured teachers if requested at least two (2) months before the leave is to be taken subject to approval by the Board.
- B. Leaves may be granted for:
 - a. Advanced study leading to a degree in an approved university.
 - b. Educationally related travel if the applicant provides an itinerary and an explanation of how such travel will improve the educational program.
 - c. Military service (dates for leaving and returning to be prearranged).
 - d. Parental.
 - e. Other reasons acceptable to the Board that will improve the educational program in the Cooperative.
- C. Teachers on such leaves may continue benefits if they reimburse the Cooperative for any prorated costs of benefits for which they apply.

- D. Teachers will not advance on the salary schedule while on any approved leave-of-absence without pay, but will be placed on the next appropriate step upon return.
- E. Teachers must notify the Cooperative of intent to return no later than June 1 and preferably by April 1 (90 days) prior to date of reemployment. Failure to do so could act as a resignation from the Cooperative.

4.7 Leave Benefits

Teachers of the Paris High School Cooperative who are given a leave-of-absence for personal or health reasons may continue to participate in the Cooperative's hospitalization plan by paying the full cost of said plan.

4.8 Civic Leave

Any teacher who serves as an elected/appointed official of a unit of local government will be released from his/her duties without loss of pay or benefits to attend official meetings of that unit of local government provided that the teacher reimburse the Cooperative for the cost of the substitute. No teacher shall be absent for civic duty leave for more than ten (10) days per school year.

4.9 Family and Medical Leave Act

Paid sick leave which is taken for a purpose that is Family and Medical Leave Act eligible shall not count against the employee's annual Family and Medical Leave Act available leave time.

ARTICLE V

TEACHER TERMINATION

5.1

No tenured teacher may be disciplined except for cause. Moreover, the Board may not dismiss any tenured teacher for reasons solely relating to the teacher's classroom performance unless the teacher has been evaluated.

5.2

In cases where the Board of Education has determined that tenured teachers' behavior and/or conduct is remediable, tenured teachers shall be given reasonable written warning specifically identifying the behavior(s) which, if not remedied, could be the basis for termination.

5.3

Prior to the issuance of a written notice of termination, the appropriate administrator will have a conference with the teacher, including therein a review of the teacher's personnel file.

ARTICLE VI

GRIEVANCE PROCEDURE

6.1 Definition

Any claim by the Association or any teacher that there has been a violation, misrepresentation, and misapplication of the terms of this Agreement shall be a Grievance. All time limits consist of school days, except that when a grievance is submitted fewer than ten (10) days before the close of the current school term, this time limit shall consist of all weekdays.

6.2 Procedure

All grievances shall be filed within thirty (30) days of the alleged violation, misrepresentation, or misapplication of the terms of the Agreement, or within 30 days of the time when the grievant could reasonably have had knowledge of same.

The parties hereto acknowledge that it is usually most desirable for a teacher and the teacher's building principal to resolve problems through free and informal communications. When requested by the teacher, an Association representative may accompany the teacher to assist in the resolution of the grievance at any level of the grievance procedure. Any formal grievance shall conform to the following:

- A. The teacher shall present the grievance in writing to the assistant principal, who will arrange for a meeting to take place within six (6) days after receipt of the written grievance. The grievant and the assistant principal shall be present for the meeting. Within five (5) days of the meeting, the grievant and the Association shall be provided with the assistant principal's response, including the reasons for the decision. If there is no response, the grievance shall proceed to Step B.
- B. If the grievance is not resolved at Step A, or withdrawn, then the grievant shall refer the grievance to the Principal, or the Principal's official designee within six (6) days after receipt of the Step A answer or within eight (8) days after the Step A meeting, whichever is the later. The Principal shall arrange for a meeting to take place with the grieving parties within five (5) days of the Principal's receipt of the appeal. Each party shall have the right to include in its representation such witnesses and counselors as it deems necessary. Within six (6) days following the meeting, the Association shall be provided with the Principal's written response including reasons for the decisions.
- C. If the dispute is not resolved at Step B., the Association may submit the dispute to final and binding arbitration, through the American Arbitration Association, which shall act as the administrator of the proceedings. If a demand for arbitration isn't filed within thirty (30) days of the date for the Step B answer, then the grievance shall be deemed withdrawn.

6.3 Bypass to Principal

If the grievant and the Principal agree, Step A of the grievance procedure may be bypassed and the grievance brought directly to Step B.

6.4 Class Grievance

A grievance involving one or more teachers or one or more supervisors, and a grievance involving an administrator above the building level may be initially filed at Step B.

6.5 Representation

No grievant shall be required to discuss any grievances if the Association's representation isn't present.

6.6 Association Participation – Teacher Not Represented

When a teacher is not represented by the Association, the Association has the right to be present to state its views.

6.7 Release Time

Should the hearing of any grievance require that a teacher or Association representation be released from his/her teaching assignment, the teacher or Association representative shall be released without loss of pay or benefits.

ARTICLE VII

NEGOTIATIONS PROCEDURE

7.1

Negotiations shall be held pursuant to the Illinois Education Labor Relations Act. The parties agree that their duly designated representative shall negotiate in good faith. Each party shall select its own representative.

7.2

If agreement is not reached, a request for a mediator by either party shall be considered a joint request of the parties.

7.3

When an impasse has been declared, the Federal Mediation and Conciliation Service shall be requested to appoint a mediator from its staff. The mediator shall meet as soon as possible with the parties and take such steps, as the mediator deems appropriate to persuade the parties to resolve their differences and effect a mutually acceptable Agreement.

ARTICLE VIII

REDUCTION IN FORCE

Whenever it is deemed necessary by the Board of Education to reduce teaching personnel, the reductions shall be made on the basis of **RIF** categories specified below:

- A. Reduction-in-force among employees covered in this agreement shall be consistent with 105 TLCS 5/24-12. More information about reduction-in-force can be found in a document developed in cooperation with the Joint RIF Committee. This document is intended to help Employees understand reduction in- force procedures. This informational document is not part of the collective bargaining agreement. Publication and distribution of the RIF list will be agreed upon by the Joint RIF committee.
- B. RIF lists shall be developed in the following areas based on evaluation ratings and seniority based on 105 ILCS 5/24-12.

- a. Math
- b. Science
- c. Industrial Technology
- d. Family and Consumer Sciences
- e. Business
- f. Social Science
- g. English
- h. Physical Education
- i. Counselor
- j. Agriculture
- k. Foreign Language
- l. Driver Education
- m. Health Education
- n. Music
- o. Art
- p. Title Reading
- q. Librarian/Media
- r. Special Education

- B. In order to automatically qualify for addition on a list, one of the following criteria must be met:

- 1. Currently teaching in that area.
- 2. Maintains a certification or special endorsement in that area from the Illinois State Board of Education and is considered to be "Highly Qualified" in that area pursuant to the Federal No Child Left Behind legislation and state law implemented in this legislation.

3. This legislation will be the determining factor for “Highly Qualified” status.
- C. If the Board of Education increases the number of teachers or has a teacher resign within one (1) calendar year after the layoff (2), the Board shall first offer reemployment to the teachers laid off, who are legally qualified to hold the position, in the reverse order of the layoff as specified in paragraphs B and C above.
 - D. A teacher’s failure to respond affirmatively within fifteen (15) calendar days after receipt of the Board’s letter recalling such teacher, sent by registered mail to the teacher’s address on file with the Board, shall result in termination of the teacher’s rights of recall hereunder.

ARTICLE IX

TEACHER EVALUATION PROCEDURE

Each teacher shall be evaluated by his/her supervisor on a regular basis following the procedures required by the Illinois School Code and any applicable regulations of the Illinois State Board of Education. The primary purpose of evaluation is to assess performance and give constructive suggestions for continued improvement. The administration in consultation with PACT has the responsibility of developing and implementing evaluative instruments for teachers. In that regard, a joint committee (PERA) comprised of an equal number of administration and PACT representatives, up to five (5) members each, will meet for teacher evaluation instrument considerations. The joint PERA Committee will continue to function, meeting a minimum of once per year, to determine how the use of data and indicators of student growth will be included in the plan pursuant to Illinois Public Act 96-0861, or to amend the evaluative instrument if the Committee deems it necessary.

9.1 Recommendations

- A. Not later than forty-five (45) days before the end of the school term, the building principal shall complete a written evaluation report and make recommendations for each probationary teacher. The report shall not contain evaluative comments that have not previously been known to and discussed with the probationary teacher.
- B. No additional information shall be placed in the teacher's personnel file without his/her knowledge.

9.2 Evaluation Plan/Procedure

- A. The Evaluation Plan, as adopted by the Board of Education, will become a part of Board Policies, but will not be included in the collective bargaining agreement between the Paris Association of Cooperative Teachers and the Board of Education.
- B. Formal observations of teachers will not occur within the first two weeks or the last week of a semester
- C. All non-tenured teachers will be observed a minimum of twice each school year with a minimum of six weeks between formal observations.
- D. **Notification** will be given to teachers in the event that a formal evaluation date must be changed and a mutually agreed upon time will be rescheduled.

9.3 Authority

Agreeing to the above procedures for formal written evaluation of classroom performance does not limit the right of management to evaluate teachers in any other manner while performing duties for Paris High School. In order for any information to be included in a teacher's formal evaluation, it must be documented and shared with the teacher according to state law.

ARTICLE X

SALARY AND RELATED BENEFITS

10.1 Compensation

Teachers will be compensated according to Appendix B, which is attached, and a part of this Agreement.

10.2 Hospitalization and Major Medical

The Board shall pay for each properly enrolled teacher eighty-five percent (85%) of the monthly premium toward his/her health and life insurance policy subject to the following:

- a. The annual in-network deductible that a teacher with single coverage shall pay in accordance with the plan terms is \$500.00
- b. The annual in-network deductible that a teacher with family coverage shall pay in accordance with the plan terms is \$500.00 per individual to a maximum of three.
- c. The annual out-of-pocket in network expense that a teacher with single coverage shall pay in accordance with the plan terms is \$1,000
- d. The annual out-of-pocket, out of network expense that a teacher with single coverage shall pay in accordance with the plan terms is \$2,000.00.
- e. The annual out of pocket, in-network expense that a teacher with family coverage shall pay in accordance with the plan terms is \$3,000.00.
- f. The annual out-of-pocket, out-of-network expense that a teacher with family coverage shall pay is \$6,000.
- g. The Board shall create an insurance committee. Four representatives selected by the Association shall serve on the committee.

10.3 Hospitalization and Major Medical Option

Teachers of the Cooperative who retire may continue to participate in the Cooperative's hospitalization plan by paying the full cost of said plan.

10.4

Extra duty will be paid upon completion of duty in a lump sum in the next regular pay check.

10.5 Mileage

Teachers of the Cooperative shall be reimbursed at the IRS mileage rate for all required school-related travel.

10.6 Extended Contract

Teachers on extended contract will be paid per day $1/180^{\text{th}}$ of the base of the column appropriate to the teacher's position on the salary schedule.

10.7 Pay Period

Each teacher of PCHS shall be paid in twenty four (24) equal payments to be made the 15th and 30th (last day if before 30th) of each month, commencing after the second full week of school. Should a regular payday fall on a day that isn't a teacher workday, teachers will receive paychecks on the last workday prior to these dates.

10.8 Outside Cooperative Teaching Experience

Each teacher will be given full credit on the salary schedule for teaching experience outside the Cooperative if the Principal deems that experience substantive.

10.9 Sheltering

The Board agrees to pay all of the contribution to the Downstate Teachers' Retirement System. To the extent provided by law, such contributions are intended to be tax sheltered.

10.10 Sick Leave Transfer

- A. The Association shall be responsible for administering the sick leave transfer program.
- B. A teacher shall be eligible to receive donated sick days under this program only if he/she has exhausted sick leave days and his/her personal leave days.
- C. Each teacher may voluntarily and irrevocably donate a maximum of two sick days from his/her accumulated sick leave any time of the school year.
- D. An eligible teacher may receive a maximum of 20 days per year and 90 day per lifetime donated days.
- E. Donated sick days may be used for any permitted sick leave purpose.
- F. The purpose of the Sick Leave Bank is to provide any teacher a means of obtaining additional sick leave days to avoid loss of compensation due to a lack of available sick days.
- G. Donations to the Sick Leave Bank are on a yearly basis and each individual's willingness to contribute must be reviewed each year.
- H. Donated days are credited to the pool of sick leave days in the Sick Leave Bank to be distributed to qualified employees. Sick Leave days donated to the Sick Leave Bank, but unused by the end of any contract year, shall remain in the Sick Bank and accumulate from year to year.
- I. Any donating employee may no longer use sick day(s) donated to the Sick Leave Bank for any purpose.
- J. All unused Sick Leave Bank days that have been granted to an employee shall be returned to the Sick Leave Bank.

ARTICLE IX

EFFECT OF AGREEMENT

11.1 Full and Complete Understanding

The terms and conditions set forth in this Agreement represent the full and complete understanding between the parties. The terms and conditions may be modified only through the written mutual consent of the parties.

11.2 Limitations

Terms and conditions not expressly provided in this Agreement are to be reserved unto the Board and its officers, and the authority granted to them by statute shall not be diminished by this Agreement.

11.3 Savings Clause

Should a court of competent jurisdiction declare any article, section, or clause of this Agreement illegal, then that article, section, or clause shall be deleted from this Agreement to the extent that it violates the law. The remaining articles, sections, and clauses shall remain in full force and effect.

11.4 No-Strike

The Association agrees that during the term of this Agreement that it or its individual members will not in whole or part refuse to render complete service to the school Cooperative.

11.5 Management Rights

- A. It is the law of the State of Illinois that the determination and administration of school policy, the operation and management of the schools and the direction of employees are vested exclusively in the Board. It is the duty of all employees to carry out the policies and regulations as stipulated by the Board. The decision of the Board of Education in matters pertaining to the determination and administration of school policy, the operation and management of the schools and the direction of employees shall be final.
- B. It is expressly understood and agreed that all functions, rights, powers or authority of the administration of the School Cooperative and the Board of Education which are not specifically limited by the express language of this Agreement are retained by the Board, provided, however, that no such right shall be exercised so as to violate any of the specific provisions of this Agreement.

11.6 Terms of Agreement

This Agreement shall be effective July 1, 2019 and shall continue in effect until June 30, 2022.

ARTICLE XII

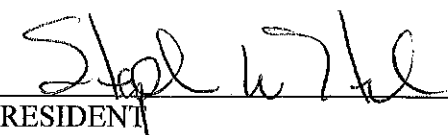
EXECUTION OF AGREEMENT

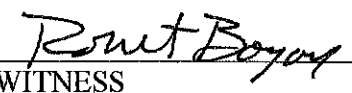
IN WITNESS WHEREOF the Parties have set forth their signatures on the date recited below:

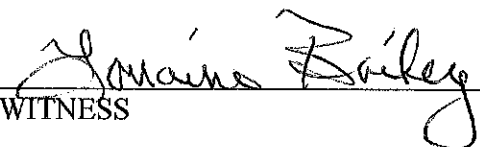
FOR THE PARIS ASSOCIATION OF
COOPERATIVE TEACHERS IEA/NEA

FOR THE BOARD OF EDUCATION
PARIS COOPERATIVE HIGH SCHOOL


PRESIDENT


PRESIDENT


WITNESS


WITNESS

DATE: 6-24-19

DATE: 6-12-19

Schedule A Extra Duty

Class Sponsor

Freshman Class Sponsor	191.00
Freshman Class Sponsor	191.00
Sophomore Class Sponsor	191.00
Sophomore Class Sponsor	191.00
Junior Class Sponsor	963.00
Junior Class Sponsor	963.00
Senior Class Sponsor	291.00
Senior Class Sponsor	291.00

Music

High School Band	5,855.00
Jazz Band	3,645.00
Elite Harmony	772.00

Clubs/Activities

Arena	1,926.00	
Art Club	772.00	
BIONIC (2 positions @ 772.00 each)	772.00	
Envirothon	27.24	per event
Eco-Team	27.24	per event
FACS	772.00	
FFA (2 positions @ 772.00 each)	772.00	
Flag/Dance Team	1,320.00	
French Club	772.00	
Interrelated Coop-Coordinator	1,926.00	
Intramural	1,345.00	
National Honor Society	772.00	
National Honor Society asst	382.00	
Newspaper	965.00	
PEN	1,926.00	
Scholastic Bowl	2,691.00	
Assistant Scholastic Bowl Coach	27.24	per event
SOS Coordinator	1,345.00	
Spanish Club	387.00	

Spanish Club	387.00	
Student Council	1,345.00	
WYSE	27.24	per event

Department Chairs

Fine Arts	2,691.00
Language Arts	2,691.00
Math	2,691.00
Science	2,691.00
Social Studies	2,691.00
High School Vocational Director	4,034.00

Teaching Longevity

20 yrs in District	965.00
30 yrs in District	1,345.00

Athletics

Head Baseball	4,608.00	
Asst. Baseball	3,453.00	
Head Boys Basketball	6,144.00	
Asst. Boys Basketball (2)	4,608.00	
Head Girls Basketball	6,144.00	
Asst. Girls Basketball (2)	4,608.00	
Bass Sponsor	27.24	per event
Cheerleading	3,844.00	
Head Cross Country	4,608.00	
Head Football	6,144.00	
Asst. Football (3)	4,608.00	
Head Golf	4,608.00	
Asst. Golf	3,453.00	
Head Softball	4,608.00	
Asst. Softball	3,453.00	
Head Boys Tennis	4,608.00	
Head Girls Tennis	4,608.00	
Head Boys Track	4,608.00	

Head Girls Track	4,608.00
Asst. Track	3,453.00
Head Volleyball	4,608.00
Asst. Volleyball	3,453.00
Head Weightlifting	3,844.00

Misc

Door Watchers	27.11	per event
Ticket Takers	27.11	per event
Bus Chaperones	27.11	per event
Crowd Control	27.11	per event
Lunchroom Supervision	21.70	per period
Internal Substitution	34.78	per period
Hourly Beyond Contract	31.56	per hour
Study Tables	31.22	per session

2019-2020									
Step	BS	BS 8	BS 16	BS 24	MS	MS 8	MS 16	MS 24	MS 32
1	30,719	31,425	32,836	34,950	37,771	38,476	39,180	39,886	40,595
2	31,021	31,733	33,158	35,293	38,141	38,854	39,564	40,277	40,993
3	31,536	32,248	33,673	35,808	38,656	39,369	40,079	40,792	41,508
4	32,051	32,763	34,188	36,323	39,171	39,884	40,594	41,307	42,023
5	32,566	33,278	34,703	36,838	39,686	40,399	41,109	41,822	42,538
6	33,088	33,792	35,205	37,324	40,155	40,856	41,566	42,273	42,979
7	34,665	35,372	36,785	38,906	41,736	42,439	43,148	43,852	44,561
8	35,480	36,189	37,600	39,720	42,549	43,253	43,961	44,666	45,375
9	36,313	37,018	38,431	40,552	43,378	44,085	44,792	45,500	46,204
10	37,160	37,869	39,281	41,401	44,227	44,935	45,637	46,348	47,055
11	38,023	38,730	40,142	42,265	45,090	45,799	46,506	47,211	47,918
12	38,906	39,618	41,027	43,148	45,971	46,681	47,384	48,092	48,799
13	39,804	40,510	41,927	44,046	46,870	47,579	48,284	48,991	49,701
14	40,719	41,424	42,838	44,956	47,785	48,492	49,197	49,904	50,611
15	41,649	42,356	43,772	45,892	48,717	49,426	50,130	50,838	51,546
16	42,598	43,307	44,718	46,838	49,661	50,372	51,076	51,782	52,491
17	44,447	44,266	45,682	47,799	50,629	51,334	52,042	52,747	53,454
18		46,167	46,664	48,784	51,608	52,316	53,021	53,729	54,438
19			48,626	49,778	52,606	53,313	54,020	54,727	55,433
20				51,825	53,624	54,327	55,036	55,738	56,448
21					55,759	55,360	56,066	56,772	57,480
22						57,550	58,273	58,993	59,714

2020-2021									
Step	BS	BS 8	BS 16	BS 24	MS	MS 8	MS 16	MS 24	MS 32
1	31,334	32,054	33,493	35,649	38,526	39,246	39,964	40,684	41,407
2	31,641	32,368	33,821	35,999	38,904	39,631	40,356	41,083	41,813
3	31,951	32,685	34,152	36,352	39,285	40,019	40,751	41,485	42,223
4	32,482	33,216	34,683	36,882	39,816	40,550	41,282	42,016	42,753
5	33,012	33,746	35,213	37,413	40,346	41,080	41,812	42,546	43,284
6	33,542	34,277	35,744	37,943	40,876	41,611	42,343	43,077	43,814
7	34,080	34,806	36,262	38,444	41,359	42,082	42,813	43,541	44,268
8	35,705	36,433	37,889	40,073	42,988	43,712	44,442	45,168	45,898
9	36,545	37,275	38,728	40,911	43,826	44,550	45,280	46,006	46,736
10	37,402	38,129	39,584	41,769	44,680	45,408	46,135	46,865	47,590
11	38,275	39,005	40,460	42,643	45,554	46,283	47,006	47,738	48,466
12	39,164	39,892	41,346	43,533	46,443	47,173	47,901	48,627	49,355
13	40,073	40,806	42,258	44,442	47,350	48,081	48,806	49,534	50,263
14	40,998	41,725	43,185	45,367	48,276	49,006	49,733	50,461	51,192
15	41,941	42,666	44,123	46,305	49,218	49,947	50,673	51,401	52,129
16	42,899	43,626	45,085	47,268	50,178	50,908	51,634	52,363	53,093
17	43,876	44,607	46,060	48,243	51,151	51,883	52,608	53,336	54,066
18	45,780	45,594	47,052	49,233	52,147	52,874	53,603	54,330	55,058
19		47,552	48,064	50,247	53,156	53,885	54,612	55,341	56,071
20			50,085	51,271	54,184	54,912	55,641	56,369	57,096
21				53,380	55,233	55,957	56,687	57,411	58,142
22					57,432	57,021	57,748	58,475	59,205
23						59,277	60,021	60,763	61,506

2021-2022									
Step	BS	BS 8	BS 16	BS 24	MS	MS 8	MS 16	MS 24	MS 32
1	31,960	32,695	34,162	36,362	39,297	40,031	40,763	41,497	42,235
2	32,274	33,015	34,497	36,719	39,682	40,423	41,163	41,904	42,649
3	32,590	33,339	34,836	37,079	40,071	40,820	41,566	42,315	43,067
4	32,910	33,666	35,177	37,442	40,464	41,220	41,974	42,730	43,489
5	33,456	34,212	35,723	37,989	41,010	41,766	42,520	43,276	44,036
6	34,002	34,759	36,270	38,535	41,556	42,313	43,067	43,823	44,582
7	34,549	35,305	36,816	39,081	42,103	42,859	43,613	44,369	45,129
8	35,103	35,850	37,349	39,597	42,600	43,344	44,097	44,848	45,596
9	36,776	37,526	39,026	41,276	44,277	45,024	45,775	46,523	47,275
10	37,641	38,393	39,890	42,139	45,141	45,887	46,639	47,386	48,138
11	38,524	39,273	40,772	43,022	46,020	46,770	47,519	48,271	49,018
12	39,423	40,175	41,673	43,922	46,921	47,671	48,417	49,171	49,920
13	40,339	41,089	42,587	44,839	47,836	48,588	49,338	50,086	50,836
14	41,276	42,031	43,526	45,775	48,771	49,523	50,270	51,021	51,771
15	42,228	42,977	44,481	46,728	49,725	50,476	51,225	51,974	52,727
16	43,199	43,946	45,447	47,694	50,695	51,446	52,193	52,943	53,693
17	44,186	44,935	46,438	48,686	51,684	52,436	53,183	53,934	54,686
18	45,192	45,945	47,442	49,691	52,686	53,440	54,186	54,936	55,688
19	47,153	46,962	48,464	50,710	53,712	54,460	55,211	55,960	56,709
20		48,978	49,506	51,755	54,751	55,502	56,250	57,001	57,753
21			51,588	52,809	55,810	56,560	57,310	58,060	58,808
22				54,982	56,890	57,636	58,388	59,133	59,886
23					59,155	58,732	59,480	60,229	60,981
24						61,055	61,822	62,586	63,351

MEMORANDUM OF UNDERSTANDING FOR RETIREMENT

This Memorandum of Understanding is made between the Board of Education of Paris Cooperative High School, Edgar County, Illinois, hereinafter referred to as the "Board" and the Paris Association of Cooperative Teachers, hereinafter referred to as the "Association."

Now therefore, it is agreed by and between the parties as follows:

An employee tendering an irrevocable letter of resignation in conformance with the following conditions shall be eligible for a retirement incentive in up to each of his/her final four (4) years of teaching service subject to the following conditions:

1. The teacher shall have a minimum of ten (10) years of continuous full-time service in the Paris Cooperative High School by the intended date of retirement.
2. The teacher shall be at least sixty (60) years of age or will have at least thirty five (35) years of creditable service upon his or her last day of service to the District and will not retire under the statutory Early Retirement Option causing the District to have to pay a penalty or other monies constituting a surcharge to the Teachers' Retirement System.
3. The teacher shall have tendered to the Board a binding, irrevocable resignation and application for the award. The teacher's notice may be given up to four (4) years prior to retirement or by September 30 of the year up to and including the school year of retirement. The pre-retirement period may be from one (1) to four (4) years in length depending upon the date the letter of resignation and the award application is received by the Board and the specified date of retirement.

In exchange for the teacher's binding, irrevocable resignation, the District agrees to remove the teacher from the salary schedule and for each year of eligibility the teacher's creditable earnings will be increased by three percent (3%) over the teacher's reportable creditable earnings for the prior year of employment. For purposes of this calculation, the previous year's creditable earnings shall not include the District's TRS contribution made on behalf of the teacher. The District may, in its sole discretion, limit the number of teachers who retire under this plan in any year to 30% of those teachers who are eligible for this benefit. In the event of any limitation in the program, the teacher with the greatest District seniority shall have the participation option. The District and the teacher agree to execute a Retirement Award Agreement that governs the payment of the retirement award.

If a teacher has an extra duty obligation at the commencement of the retirement incentive program and ceases to perform those services during the retirement incentive program period, the calculation of the teacher's three percent (3%) increase shall be reduced by the amount of the extra duty compensation.

Once an irrevocable letter of retirement is submitted, the employee will not be assigned any additional extra duties or TRS reportable duties not currently being performed without the consent of the employee.

If a teacher fails to complete the pre-retirement period, leaves the District prior to the designated retirement date or otherwise retires under the statutory Early Retirement Option causing the District to have to pay a penalty or other monies constituting a surcharge to the Teachers' Retirement System, the District shall be entitled to damages for breach of contract against the Teacher in an amount equal to the retirement award payment received by Teacher, including tax and retirement withholdings. Upon complete reimbursement, the teacher shall be entitled to any general wage increase, which would have been applicable during the pre-retirement period.

In the event the retirement award provided for in this article would cause the District to have to pay a penalty or other monies constituting a surcharge to the Teachers' Retirement System, or would conflict with any state statute or final rule or regulation promulgated by the Teachers' Retirement System, the provisions of this section shall become void and the parties agree to reopen this agreement and attempt to midterm bargain changes necessary to correct any defect created by this incentive.

Teachers should not rely upon the continuation of this retirement incentive award payment program in subsequent collective bargaining agreements. Unless the parties agree to continue this Section in a subsequent collective bargaining agreement, the foregoing benefits will be denied to those who have not applied for such benefits prior to the expiration of this agreement on, or by the end of the 2021-2022 school year, whichever occurs sooner.

MEMORANDUM OF UNDERSTANDING FOR 1/8th PAY and INDEPENDENT STUDY

1. **1/8th Pay** - Teachers who are assigned an extra class, causing the teacher to lose the planning time (prep period), or requiring them to teach an additional class before/after regular school hours, in addition to their regular school day schedule, shall be paid one-eighth ($\frac{1}{8}$) of the teacher's salary schedule amount.
2. **Independent Study** - Any additional duties assigned, outside of the regular classroom teaching, requiring teachers to mentor/advise student(s) with Independent Study Projects and Group Study Projects, teachers shall
 - a. Have the right of refusal of non-Schedule A additional duties outside of regular classroom/teaching assignments.
 - b. PACT agrees with the Paris High School Cooperative Board of Education that a new procedure for independent study will be developed during the first year of this contract, and that this Independent Study Memorandum of Understanding will sunset at the end of year 1 (2019-2020).